

That reasoning, frequently applied in the 19th century,¹⁷ parallels the theory behind qualified immunity under § 1983. This Court has recognized the importance of preserving the autonomy of executive bodies entrusted with discretionary powers. *Scheuer v. Rhodes* held that executive officials who have broad responsibilities must enjoy a "range of discretion [that is] comparably broad." 416 U.S., at 247. Consequently, the immunity available under § 1983 varies directly with "the scope of discretion and responsibilities of the office. . . ." 416 U.S., at 247. Strict municipal liability can only undermine that discretion.¹⁸

¹⁷ *E. g.*, *Goodrich v. Chicago*, 20 Ill. 445 (1858); *Logansport v. Wright*, 25 Ind. 512 (1865); *Mills v. Brooklyn*, 32 N. Y. 489, 498-499 (1865); *Wilson v. Mayor &c. of City of New York*, 1 Denio 595, 600-601 (N. Y. 1845); *Wheeler v. Cincinnati*, 19 Ohio St. 19 (1869) (*per curiam*); *Richmond v. Long's Adm'rs*, 17 Gratt. 375 (Va. 1867); *Kelley v. Milwaukee*, 18 Wis. 83 (1864).

¹⁸ The Court cannot wish away these extensive municipal immunities. It quotes two 19th-century treatises as referring to municipal liability for some torts. *Ante*, at 640. Both passages, however, refer to exceptions to the existing immunity rules. The first treatise cited by the Court concedes, though deplores, the fact that many jurisdictions embraced the governmental/proprietary distinction. T. Shearman & A. Redfield, A Treatise on the Law of Negligence § 120, pp. 140-141 (1869). The same volume notes that local governments could not be sued for injury caused by discretionary acts, *id.*, § 127, at 154, or for officers' acts beyond the powers of the municipal corporation, *id.*, § 140, at 169. The Court's quotation from Dillon on Municipal Corporations stops just before that writer acknowledges that local governments are liable only for injury caused by nondiscretionary acts involving "corporate duties." 2 J. Dillon, Law of Municipal Corporations § 764, p. 875 (2d ed. 1873). That writer's full statement of municipal tort liability recognizes immunity for both governmental and discretionary acts. Dillon observes that municipal corporations may be held liable only "*where a duty is a corporate one*, that is, one which rests upon the municipality in respect of its special or local interests, and not as a public agency, and is *absolute and perfect*, and not discretionary or judicial in its nature. . . ." *Id.*, § 778, at 891 (emphasis in original).

The Court takes some solace in the absence in the 19th century of a